

CITY OF BURNABY

REQUEST FOR PROPOSAL

#177-08-26

Customer Service Centre Web Portal

August 12, 2026

REVIEW

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1.0 INTENT

1.1 Purpose

- 1.1.1 The City of Burnaby ("**City**") is requesting Proposals from qualified and experienced Proponents to implement, configure, integrate, and support a secure, citizen-facing Customer Service Centre ("**CSC**") Web Portal that enables residents, businesses, and visitors to access City services and submit, track, and manage service requests through an intuitive digital experience integrated with Microsoft Dynamics 365 Customer Service.
- 1.1.2 The City of Burnaby encourages Proponents to buy Canadian. The Proponent should provide a list of all major suppliers, manufacturers and service providers involved in the contract, including their country of origin and whether they are based in the United States.

1.2 Term

- 1.2.1 The City may award a Contract for a two (2) year term, with options of three (3) each, one (1) year terms for a total possible term of five (5) years, in accordance with the attached terms, conditions and requirements of this RFP.

1.3 Estimated Timelines

- 1.3.1 The City is targeting the following estimated timelines and are subject to change at the sole discretion of the City:

Milestone	Estimated Dates
RFP Issued	August 12, 2026
RFP Closing Date	September 2, 2026
Negotiation and Contracting	September 2026
Kick-Off Meeting	September/October 2026[

- 1.3.2 It is noted that the negotiation and contracting milestone may affect the start date of the target implementation and timeframe milestone if more time is needed for that milestone.

2.0 DOCUMENT AVAILABILITY AND RESPONSIBILITIES

- 2.1 This RFP is being issued electronically through the on-line bidding system at <https://burnaby.bidsandtenders.ca> where any interested party may download the RFP documents directly from the aforementioned website. No registration, tracking or other recording of RFP document holders will be performed by the City. All addenda, amendments or further information will be published through <https://burnaby.bidsandtenders.ca>. It is the sole responsibility of the Proponent to monitor the website regularly to check for updates.

3.0 TERMINOLOGY

- 3.1 Throughout this RFP, the following terms shall have the meanings set forth below:

- (a) **“City”** means the City of Burnaby;
- (b) **“Contract”** means the written agreement or purchase order resulting from this Request for Proposal awarded to and/or executed by the City and the successful Proponent;
- (c) **“Contract Documents”** means the Request for Proposal documents, that form part of the Proposal that is accepted by the City, the purchase order and executed agreement;
- (d) **“Contractor”** means the successful Proponent to this Request for Proposal who is awarded a purchase order or enters into a written Contract with the City;
- (e) **“CSC”** means Customer Service Centre;
- (f) **“must”** or **“mandatory”** means a requirement that must be met in order for a Proposal to receive consideration;
- (g) **“on-line bidding system”** means the bids&tenders website available through <https://burnaby.bidsandtenders.ca;>
- (h) **“Proponent”** means a party, a company or an individual, that has obtained a copy of this Request for Proposal and submits, or intends to submit, a Proposal in response to this “Request for Proposal”;
- (i) **“Proposal”** means the submission by the Proponent in response to this RFP;
- (j) **“RFP”** means Request for Proposal;
- (k) **“SaaS”** means Software-as-a-Service solution;
- (l) **“Services”** has the meaning set out in Section 4.0 of this RFP and includes, at a minimum, all goods, services and deliverables, including the Solution, to be provided by the Contractor to the City, as described in this RFP;
- (m) **“shall”, “will”, “should”** or **“desirable”** means a requirement having a significant degree of importance to the objectives of the Request for Proposal;
- (n) **“Solution”** means a Web Portal system capable of performing the Services, in a live production environment for commercial use by the City, and all related implementation Services; and
- (o) **“Sub-contractor”** means a sub-contractor having a contract with the Contractor for the performance of any part of the Work;
- (p) **“Work”** means the goods, all services and deliverables to be provided by the Contractor, and as described in this RFP.

4.0 SCOPE OF WORK

4.1 Background

- 4.1.1 The Customer Service Centre is a centralized service for the City of Burnaby that supports the intake, assignment, tracking, and response to resident, business, and visitor inquiries, service requests, and feedback. The City has implemented Microsoft Dynamics 365 Customer Service as the primary customer relationship management platform for managing cases and improving visibility into customer interactions. The next phase of the CSC technology roadmap is to provide a secure, resident-facing web portal that allows users to submit, track, and manage service requests online through a consistent digital experience integrated directly with Dynamics 365.
- 4.1.2 The City is undertaking the implementation of a modern Customer Service Centre Web Portal to improve online access to City services and reduce manual effort across request intake, routing, and follow-up activities.
- 4.1.3 Some of the challenges the City is currently experiencing include:
- a) Service request intake is currently spread across multiple channels, including phone, email, in-person interactions, and existing web forms, which can create inconsistent intake information, manual follow-up, and additional effort for CSC staff and business departments.
 - b) Residents do not have a consistent self-service experience to discover the correct service, submit the appropriate request, receive confirmation, and track the status of a request without contacting the City for updates.
 - c) Existing online forms and service request pathways are not fully standardized or consistently connected to Dynamics 365 for automated case creation, routing, status updates, and reporting.
 - d) Location-based requests require more accurate address search, validation, and map-based selection capabilities to improve request precision and reduce clarification or rework.
 - e) The City requires a portal that is branded, accessible, mobile responsive, privacy compliant, secure, maintainable by City staff, and scalable for future digital service expansion.

4.2 Solution Vision/ Objective/ Outcomes

- 4.2.1 The City's vision for this project is to provide a secure, accessible, and citizen-centric digital portal that serves as a single online entry point for residents, businesses, and visitors to discover City services, submit service requests, receive confirmation, and track request status through a consistent self-service experience integrated directly with Microsoft Dynamics 365 Customer Service.
- 4.2.2 The Proponent's Solution should provide a cost effective, market proven solution that:
- (a) Be fully supported, hosted, maintained, and kept current by the Proponent and/or implementation partner, including software updates, security patches, troubleshooting, and ongoing support services;
 - (b) Provide an intuitive, accessible, mobile responsive, and branded user experience for residents, businesses, visitors, CSC staff, administrators, and IT support staff;

- (c) Deliver a unified self-service portal that supports service discovery, keyword search, categorized browsing, configurable service request forms, anonymous and authenticated submissions, confirmation numbers, automated notifications, and request status tracking;
- (d) Integrate directly with Microsoft Dynamics 365 Customer Service for automated case creation, routing, management, status updates, and reporting, without requiring duplicate data entry or manual intervention;
- (e) Support accurate location-based service requests through address search, validation against City address data, geolocation where appropriate, and optional map-based selection;
- (f) Allow authorized City staff to configure and maintain service catalogues, forms, messaging, routing rules, and workflow settings without requiring vendor involvement for routine operational changes;
- (g) Provide reporting, dashboards, auditability, and data export capabilities to support CSC operations, service performance monitoring, continuous improvement, and future digital service planning;
- (h) Be scalable, secure, privacy compliant, accessible, and aligned with British Columbia FOIPPA requirements, City security standards, and the City's long-term objective of expanding digital service delivery.
- (i) Include the ability or option to support a decoupled API layer to enable future integration with other internal City systems and channels.

4.3 Description of the Scope of Work

- 4.3.1 The Contractor should provide all services, resources, tools, and deliverables required to plan, design, configure, integrate, test, deploy, and support the Customer Service Centre Web Portal. The Work includes confirming detailed requirements with the City, preparing the solution design and implementation plan, configuring the portal and related administrative capabilities, establishing integration with the City's Customer Relationship Management ("CRM") environment and approved supporting services, supporting user acceptance testing, completing production readiness activities, training City staff, and transitioning the Solution to steady-state operations. The Contractor should also identify any assumptions, dependencies, exclusions, risks, required City resources, third-party components, and optional future capabilities that may affect delivery, schedule, cost, supportability, or long-term maintainability.
- 4.3.2 The initial implementation is expected to focus on approximately three (3) to four (4) existing service request forms that the City has already implemented in Microsoft Dynamics 365 Customer Service. The Contractor should use these forms as the initial implementation scope for portal configuration, integration, testing, training, and launch planning, while ensuring the Solution remains configurable and scalable for additional forms and services in future phases.
- 4.3.3 The City has prepared preliminary design mock-ups and has tentatively defined the desired user interface approach for the portal. These materials are intended to serve as a starting point for discussion, validation, and refinement with the Contractor before development begins. The Contractor should review the mock-ups with the City, confirm the user experience and design direction, identify any recommended improvements, and obtain City approval before proceeding with detailed development or configuration activities.
- 4.3.4 The Solution should preferably be a cloud-based SaaS solution and must meet or exceed the requirements described in the following appendices:

- a) **Appendix G – Functional Requirements;**
- b) **Appendix H – Non-Functional Requirements; and**
- c) **Appendix I – Security Risk Assessment Questionnaire.**

4.4 Deliverables

4.4.1 The Contractor shall deliver:

- a) A fully configured, tested, production-ready Web Portal, including any required environments, administrative configuration, integrations, and supporting components necessary for City review and acceptance;
- b) Project initiation and planning deliverables, including a project schedule, implementation plan, communications approach, roles and responsibilities, assumptions, dependencies, risks, issues, decision log, and change control approach;
- c) Requirements confirmation and traceability materials, including workshop outputs, finalized requirements, acceptance criteria, and mapping to the applicable functional, non-functional, and security requirements;
- d) Solution design documentation describing the portal architecture, user experience approach, service catalogue model, form configuration approach, data model impacts, integration design, security model, privacy considerations, and operational administration model;
- e) Configured service catalogue, intake forms, workflow rules, notifications, status tracking, location capture, and administrative features required for the initial implementation;
- f) Integration deliverables, including configured connectivity to Microsoft Dynamics 365 Customer Service and any applicable Dynamics 365 configuration changes required to make the Solution operational end-to-end. This includes interface specifications, data mappings, case and contact/account mapping, service request form mapping, case lifecycle and status synchronization, queue and routing rules, workflow or Power Automate changes, notification triggers, security roles and permissions, environment and solution deployment considerations, error handling and retry approach, monitoring and support procedures, testing evidence, and documentation for any optional decoupled API capability proposed for future expansion beyond Dynamics 365;
- g) Testing deliverables, including test strategy, test scripts, system integration testing results, accessibility testing evidence, security and privacy validation support, defect logs, remediation tracking, and user acceptance testing support;
- h) Training and knowledge transfer materials for City administrators, CSC and IT Support staff, and other identified stakeholders, including user guides, administrator guides, and train-the-trainer materials where applicable;

- i) Deployment and production readiness deliverables, including cutover plan, rollback plan, release checklist, operational readiness checklist, support model, escalation process, and go-live recommendation;
- j) Post go-live support deliverables, including stabilization and hyper care plan, issue triage process, warranty support details, maintenance schedule, service level commitments, and transition-to-operations documentation; and
- k) Final project closeout documentation, including as-built configuration documentation, open items and backlog recommendations, final acceptance package, lessons learned, and confirmation of all agreed deliverables provided to the City.

4.5 Contractor Account Manager

- 4.5.1 The Contractor shall provide a qualified project manager to serve as and be empowered to act as its representative in providing project management services throughout the implementation of the project. The Contractor's project manager shall be assigned to this project and be available to the City during all major implementation, testing and operational activities. The Contractor agrees to work with the City to ensure proper change management and assist in the support of this implementation. The Contractor and the City shall use commercially reasonable efforts to fulfill their respective obligations in a timely manner in order to achieve the agreed milestones and dates. The Contractor's project manager shall provide and commit to a detailed implementation plan covering the implementation of all Solution components needed to make the Solution fully operational on or before **December 2, 2026**.

4.6 Contractor's Personnel

- 4.6.1 The Contractor shall provide only qualified personnel, fully trained and experienced in performing the Work requested in accordance with good industry practice. If the City reasonably objects to the performance, qualifications, experience or suitability of any of the Contractor's personnel or Sub-contractors, then the Contractor will, on written request from the City, replace such personnel or Sub-contractors.

4.7 Training

- 4.7.1 The Contractor should provide role-based training and knowledge transfer for City administrators, CSC users, IT support staff, and other identified stakeholders. Training materials should be specific to the City's configured Solution and include user guides, administrator guides, technical documentation, hands-on workshops, train-the-trainer support, and accessible help resources where applicable.
- 4.7.2 The Contractor shall provide to the City additional user training on an "as and when requested" basis.

4.8 Project Management

- 4.8.1 The City will assign a Project Sponsor and Project Manager. The Contractor shall work with the City's Project Manager to plan, coordinate, monitor, and report on the Work in accordance with the agreed implementation plan, schedule, risks, issues, decisions, and communication approach.

4.9 Requirements

- 4.9.1 The Solution should meet or exceed the City's functional, non-functional, and security requirements as described in **Appendix G – Functional Requirements**, **Appendix H – Non-Functional Requirements**, and **Appendix I – Security Questionnaire**. If a Proponent cannot meet a requirement, the Proponent should identify the gap and describe the proposed approach, timing, and conditions for meeting the requirement.
- 4.9.2 The Proponent should clearly describe the proposed hosting model, data residency, and privacy approach for the Solution. At a minimum, the Proposal should identify where City data will be stored if applicable, processed, backed up, replicated, accessed, and supported; whether any City data may leave Canada; the hosting region(s) and service provider(s); any subcontractors or third-party processors involved; any remote support access from outside Canada; and the controls used to protect personal information and comply with British Columbia FOIPPA requirements and applicable City privacy and security expectations.
- 4.9.3 The Solution should conform to WCAG 2.1 AA or newer accessibility standards for public-facing digital services. The Proponent should describe how accessibility will be addressed through design, configuration, testing, documentation, remediation, and ongoing support, including keyboard navigation, screen reader compatibility, colour contrast, responsive design, and accessible user guidance.
- 4.9.4 The Proponent should describe the proposed integration architecture, including data flows between the portal and Microsoft Dynamics 365 Customer Service, use of APIs, connectors, middleware, Power Platform components, authentication, error handling, retry logic, monitoring, alerting, ownership of integration components, licensing impacts, and any optional decoupled API layer proposed for future integrations.
- 4.9.5 The Proponent should describe the service catalogue governance and administration model for the Solution, including roles and permissions, draft/review/publish processes, versioning, approvals, audit history, promotion of configuration between environments, and how authorized City staff will maintain service categories, forms, messages, routing rules, and workflow settings.
- 4.9.6 The Proponent should identify the environments required for implementation and ongoing operations, including development, testing, training, staging, and production environments where applicable. The Proposal should describe environment refresh, configuration migration, data masking for non-production use, access controls, monitoring, support responsibilities, and any cost implications for each environment.
- 4.9.7 The Proponent should describe exit and transition provisions for the Solution, including City data ownership, data export formats, transition-out assistance, knowledge transfer, configuration documentation, decommissioning support, data retention and deletion after contract end, timelines for final data return or destruction, and any fees associated with transition activities.

5.0 PREFERRED QUALIFICATIONS

5.1 The Proponent should have the following preferred qualifications that are required for consideration of contract award:

- (a) be an established and significant market leader in the industry with demonstrated experience designing, building, implementing, and supporting secure web portals, and with the expertise, financial strength and capability to be a long-term partner to the City;
- (b) have at least five (5) years of recent and relevant experience in implementing the Solution in organizations of a similar size and scope to the City;
- (c) be professional, experienced and qualified to assist with the City's initiative, and should clearly articulate their Solution scope, with achievable plans for a seamless implementation program;
- (d) be in good standing with WorkSafeBC; and
- (e) Proposals shall include a list of at least three (3) relevant completed projects with references and telephone numbers/email contact information for each key personnel. By submitting a Proposal, the Proponent consents to the City contacting these references at its discretion, and consents to the City also contacting any other organization for the purposes of evaluating the Proposal. Refer to **Attachment F – Corporate References**.

5.2 All qualifications will be assessed and interpreted by the City at its own discretion.

6.0 INSTRUCTIONS TO PROPONENTS

6.1 ELECTRONIC SUBMISSIONS ONLY, shall be received by the on-line bidding system. Hardcopy submissions are not permitted.

6.2 Proponents are cautioned that the timing of their submission is based on when the Proposal is RECEIVED by the on-line bidding system, not when a Proposal is submitted, as transmission can be delayed due to file transfer size, transmission speed, etc.

6.3 For the above reasons, it is recommended that sufficient time is given to complete your submission and to resolve any issues that may arise. **The closing time and date shall be determined by the on-line bidding system's web clock.**

6.4 Proponents should contact bids&tenders support listed below, at least twenty-four (24) hours prior to the closing time and date, if they encounter any problems. The on-line bidding system will send a confirmation email to the Proponent advising that their Proposal was submitted successfully. If you do not receive a confirmation email, contact bids&tenders support at support@bidsandtenders.ca.

6.5 Late submissions are not permitted by the on-line bidding system.

6.6 ELECTRONIC SUBMISSIONS of the Proposal marked "**RFP #177-08-26 Customer Service Centre Web Portal**", bearing the name of the firm or individual bidding, will be received up to **3:00 p.m. PDT, September 2, 2026 through the on-line bidding system.**

6.7 Technical Issues:

- 6.7.1 Notwithstanding the above, the City, acting reasonably and in its sole opinion, reserves the right to issue a post-closing Addendum to extend the RFP closing date if there are any technical issues with receiving Proposals through the On-line bidding system. If the City issues a post-closing Addendum, any Proponent may submit a Proposal directly to the City as detailed in the post-closing Addendum.

6.8 Clarification and Addenda

- 6.8.1 If a Proponent is in doubt as to the true meaning of any part of this RFP document, or finds omissions, discrepancies or ambiguities, a request for interpretation or correction shall be submitted at least five (5) working days prior to the closing date and, if deemed necessary by the City, an addendum will be issued on the bids&tenders website through <https://burnaby.bidsandtenders.ca>. This procedure also applies should the City, of its own accord, wish to expand or delete any part of these terms of reference.
- 6.8.2 The City may amend any term, condition, specification, instruction or requirement contained in this RFP, or in any information supplied with or following this RFP, at any time, before or after the closing time for submission of the RFP. The City may cancel this RFP at any time.
- 6.8.3 In the event that the City determines that any clarification or change is required, the City will issue a written and numbered addendum and publish on the bids&tenders website through <https://burnaby.bidsandtenders.ca>.
- 6.8.4 The Proponent shall acknowledge all addendums within their response. Failure to do so may result in the response being rejected.
- 6.8.5 Questions related to this RFP are to be submitted ONLY to the Purchasing representative through the bids&tenders website at <https://burnaby.bidsandtenders.ca> by clicking on the "Submit a Question" button for this specific opportunity.
- 6.8.6 The Proponent is instructed not to direct queries to the attention of parties outside the Purchasing department, including any departments of the City, its subsidiaries, staff, Council members, consultants or other Proponents. Information obtained from any other source is not official and may be inaccurate. The City will not be bound by any informal explanation, clarification or interpretation, whether given orally or in writing, by whomsoever made, that is not incorporated into an addendum to the RFP documents.

6.9 Submission Requirements

- 6.9.1 The RFP response shall be submitted in the English language. The Proponent shall submit the name and relevant phone/email details of the contact person authorized to answer any questions regarding clarification or to provide additional details.
- 6.9.2 **Compliance:** The Proponent must carefully review the RFP documents. Any and all departures from and clarifications to these documents must be clearly stated in a non-compliance statement and attached to the submission. Failure to attach a statement will be interpreted as compliance with the City's requirements.

6.9.3 Completeness: RFP responses are to be complete in every respect, including signatures / initials of authorized persons, where required, and responses to all information requested.

6.10 Submission Format

6.10.1 Proposals should include the following components:

- a) **Title Page:** Include RFP title and number, closing date, legal company name of Proponent, address, contact name, email address and phone number.
- b) **Table of Contents:** List the major sections and the corresponding page numbers.
- c) **Executive Summary:** This section to include, but not limited to the following:
 - i. Include a statement of the understanding of the requirement;
 - ii. Highlighting the key features and benefits of the Proposal; and
 - iii. How the Proponent will meet and/or exceed the City's expectation of these RFP requirements.
- d) **Company Profile:** This section to include, but not limited to the following:
 - i. Brief company profile and company's history;
 - ii. Length of time in business and core competencies;
 - iii. Number of staff employed; and
 - iv. Financial stability information.
- e) **Capabilities of the Proposed Solution:** This section to include, but not limited to the following:
 - i. Proponent to describe how the Solution will help the City meet the stated Solution vision, objectives and deliverables of this RFP.
 - ii. Proponent to describe how the Solution will meet or exceed the requirements of this RFP.
 - iii. Proponents should complete the following Appendices to showcase how the submitted Solution meets or exceeds the City's requirements:
 - **Appendix G – Functional Requirements;**
 - **Appendix H – Non-Functional Requirements; and**
 - **Appendix I – Security Risk Assessment Questionnaire.**
- f) **Methodology and Work Plan:** Proponents shall provide a detailed description of the Work program and methodology required for the project including identifying and estimating all Services necessary for the successful implementation of the proposed Solution;
 - i. Identify all project phases including discovery, design, development, testing, training, implementation and launch;
 - ii. For each project phase, provide an overview of the project objectives, scope of project, timeline, deliverables and budget;
 - iii. Identify all the steps to be taken and hours/days that would be required of City staff and the Proponent team;
 - iv. Identify and clearly explain the role of each resource you will be using and the role(s) they will play in the development of the plan;
 - v. Identify and clearly explain City roles required to assist with the Project; and
 - vi. Identify items that may not have been defined in this RFP.
 - vii. Identify any challenges you anticipate in this project and how you propose to mitigate them;
 - viii. Describe the schedule of project meetings and the proposed format of these meetings;

- ix. Detail the strategies for communication with the City during implementation, including details on status reporting, recording/sharing key decisions, timeline updates and budget updates; and
- x. Submit an estimated project schedule, with major item descriptions and time indicating a commitment to provide the Solution and perform the Services within the time specified. As a minimum, the Proponent's estimated project schedule should be in sufficient detail to specify the work breakdown structure for all tasks, deliverables as set out in this RFP.

g) Pricing:

- i. All pricing shall be expressed in Canadian Dollars and shall be clearly itemized on **Appendix C – Pricing Form**.
- ii. Pricing shall be a fixed fee to deliver the Services to the City and shall include all implementation, configuration, integration, software, subscription, hosting, environment, optional module, transaction or usage-based, support and maintenance, updates, upgrades, third-party, data storage, API, exit/export, duties, taxes, disbursement, and travel costs, if any, for the Project.
- iii. The City's preference is payment upon completion, and acceptance of each major project phase. Proponents are to include a cost breakdown with reference to each phase of the project:
 - It shall include total costs, costs of any Sub-contractor(s), and disbursements with GST shown separately. Out of town travel costs should be listed separately;
 - The cost breakdown should be broken down by each project phase (discovery, design, development, testing, training, implementation and launch);
 - Costs should be included for software license costs including subscription, support and maintenance for the initial term, if applicable and any other costs. Include costs for renewal terms for software subscription, upgrades, support and maintenance per year, if applicable;
 - Hourly rate for additional professional consulting services, if applicable; and
 - Advise if there would be any additional costs associated with the software or Services, such as application hosting or third party applications or extensions.
- iv. Provide a lifecycle cost summary for the initial term and each renewal term, including implementation, subscription or licensing, support, maintenance, hosting, environments, integrations, optional modules, transaction or usage-based fees, data storage, API usage, price escalation assumptions, future service additions, and exit or data export costs.

h) Qualifications:

- i. Provide a list of a minimum of five projects that were completed by the Proponent in the last five (5) years that demonstrates successful completion of comparable Work on similarly complex projects and preferably from municipal government or local government; and
- ii. Demonstrate your industry expertise, financial strength and capability to be a long-term partner to the City.
- iii. Proponent should submit with its Proposal a Clearance Letter from the WorkSafeBC confirming that the Proponent is currently in good standing.

i) Experience of Key Personnel:

- i. Provide a list of all individuals, including Sub-contractors (**Appendix D – Proposed Sub-Contractors**), proposed to be involved in the project. Include their relevant experience, qualifications, hourly rate, role in the project and resume documenting their educational background; and

- ii. Provide a list of projects that were completed by the identified individual(s) that were completed in the last five (5 years) and provide the contract value of the listed projects.

j) Warranty, Support & Maintenance Services:

- i. Proponents should provide information regarding the warranty of the software and services, to include, but not limited to the following:
 - Terms of warranty including warranty period duration.
 - Definition of what the warranty covers.
 - Clarify any and all circumstances where items will not be covered under warranty.
 - Clearly describe the warranty process, how warranty items are dealt with; and
 - Disclose any costs charged to the City regarding warranty.
- ii. Proponents should provide information regarding the support and maintenance of the Solution and Services, to include, but not limited to the following:
 - Terms of support and maintenance including duration;
 - Definition of what the support and maintenance covers;
 - Clarify any and all circumstances where items will not be covered under support and maintenance;
 - Clearly describe the support and maintenance process, how support and maintenance items are dealt with; and
 - Disclose any costs charged to the City regarding support and maintenance.
- i. Proponents to include any service level agreements with their Proposal.

k) Value Added Offerings:

- i. Describe, in **Appendix E – Value Added Offerings**, any value-added services or process by-products the Proponent is prepared to provide as part of the Contract, in the form of services or deliverables; unless it is otherwise stated, these offerings will be at no extra cost.

l) References:

- i. Proponent to complete **Appendix F – Corporate References** and include the names, addresses, contacts and telephone numbers of no fewer than three (3) organizations (preferably from a municipal government) for which the Proponent has performed services similar in scope and breadth to those proposed herein. It is the City's intent to check the references, and to take the findings into account in the award of a Contract.

- m) Concurrence that the Proponent has or will obtain and maintain insurance coverage required by the City as outlined in **Appendix A** and **Appendix B** attached.**

6.10.2 Prior to commencing any Work, the Contractor will be required to enter into the City's agreement (**Attachment 1**) and may be required to sign **Attachment 2 – Non-Disclosure Agreement** upon a Contract award or shortlisting.

7.0 EVALUATION CRITERIA AND PROCESS

7.1 Evaluation Criteria

7.1.1 Phases:

Phase 1 - The evaluation process will consist of the review and evaluation of the Proposals by the City's evaluation team. If required, Proponents may be requested to clarify information provided in their Proposals. Phase 1 may be used to identify Proponents who may be shortlisted for the Phase 2 – Demonstrations and Reference Checks. The City reserves the right to not conduct Proponent demonstrations and move to the selection of a lead Proponent.

Phase 2 - Demonstrations and Reference Checks. The Phase 1 shortlisted Proponents invited to Phase 2 will be requested to provide demonstrations; refer Section 7.3. Reference checks may be conducted in this stage.

Phase 3 - Selection of Lead Proponent. The City may identify a Lead Proponent and enter into contract negotiations.

7.1.2 Proposals will be evaluated on the basis of the following criteria:

Phase 1	
Evaluation Criteria	Weighting
Capabilities of the Solution	35%
Proposed Methodology & Work Plan	20%
Pricing	20%
Qualifications & Experience of Proponent	15%
Warranty, Support & Maintenance Services	10%
Mandatory Requirements	Pass/Fail
TOTAL PHASE 1	100%

Phase 2	
Evaluation Criteria	Weighting
Phase 2 - Shortlisted Proponent Demonstrations	100%
Phase 2 - Reference Checks	Pass/Fail

7.1.2 Proponents are deemed to understand and agree that the Proposals submitted will be used by the evaluation team in determining, according to the evaluation team's sole and best judgment and discretion, the Proponent who is best qualified to provide the required services and whose Proposal offers the best value to the City for this project.

- 7.1.3 The lowest price or highest rated Proposal or any Proposal may not necessarily be accepted. The City reserves the right to:
- a) reject any or all Proposals and will not be responsible for any costs associated with their preparation;
 - b) cancel this RFP at any time without selecting any Proponent to execute a final contract, even after the closing time and date;
 - c) not accept a Proposal if only one Proposal is received;
 - d) cancel this RFP if one or more Proposals exceed the City's budget for the project;
 - e) not proceed with any Proponent presentations or demonstrations; and
 - f) select a Proposal in whole or in part.

7.2 Evaluation Process

- 7.2.1 The evaluation of Proposals may be done in stages. The first stage of the evaluation process will consist of the review and evaluation of the Proposals by the City's evaluation team. If required, Proponents may be requested to clarify information provided in their Proposals. The first stage may be used to identify Proponents who may be shortlisted for presentations/ demonstrations.
- 7.2.2 Proposals are evaluated according to the Evaluation Criteria listed above. Each item falls into a category which bears weighted importance to a Proponent's overall score, and is reflective of the item's importance to the Solution's project.
- 7.2.3 Shortlisted Proponents may be asked, at the sole discretion of the City, to provide additional information, provide details for clarification, or present/ demonstrate their proposed Solution, which may be used as part of the evaluation process.

7.3 Presentation and Demonstration

- 7.3.1 Proponents are advised that, in order to facilitate the City's understanding of the Proponent's Proposal, any or all Proponents may, at the City's absolute discretion and upon prior written notice, be required to make a presentation or demonstration of their Solution, in person at the City's offices and/or by telephone or web conference. If required, each presentation or demonstration will take place at a time appointed by the City.
- 7.3.2 The City may request demonstration of certain scenarios specified by the City. Any demonstration will allow the Proponent to present their Proposal and demonstrate their proposed Solution to the City. The City reserves the right, to record audio/visual of any shortlisted Proponent's demonstration as part of its evaluation process.
- 7.3.3 The proposed Solution used in the demonstration must be the same as that included in the Proposal. If certain requirements as specified are met by third-party software as part of the Proponent's Solution, the Proponent is expected to demonstrate the third-party product and so indicate during the demonstration.
- 7.3.4 By participating in a demonstration, the Proponent confirms its agreement with these procedures and acknowledges that the meeting is an integral part of the competitive selection process as described in this RFP and is in the interests of all parties.

- 7.3.5 Proponents are asked to follow the agenda and showcase the desirable functionality of the proposed Solution. Shortlisted Proponents are encouraged to highlight and discuss the unique aspects of their proposed Solution and how their proposed Solution would benefit the City.
- 7.3.6 Upon completion of presentations/ demonstrations, the City may identify a lead Proponent.
- 7.3.7 The City may elect to enter into negotiations with the lead Proponent or with any other Proponent concurrently. In no event will the City be required to offer any modified terms to any Proposal prior to entering into a Contract, and the City will not be liable to any Proponent as a result of such negotiations. The City reserves the right to divide the Work or services and award more than one Contract.

8.0 CONTRACT TERMS

- 8.1 The Contract that has been adopted by the City for technology projects is included in this RFP solicitation as **Attachment 1**. Proponents are responsible to review all specifications, requirements, terms and conditions, insurance requirements, and other requirements herein. Proponents should be prepared to enter into a Contract substantially the same as the one attached as **Attachment 1**.
- 8.2 Submittal of a Proposal is agreement to the above condition. Proponents are to price and submit Proposals to reflect all the specifications and requirements in this RFP and terms and conditions substantially the same as those included in this RFP.
- 8.3 Proponents are strongly discouraged from requesting any modifications to the Contract. Notwithstanding the foregoing, Proponents should include as part of their Proposals a description of any provisions of the draft Contract that are unacceptable to the Proponent or which do not provide good “value for money” and which the Proponent would request to be deleted or amended. Proponents should provide the rationale for any requested deletions, deviations, or alternative wording. Any requested deletions, deviations, or alternative wording may, at the sole discretion of the City, be grounds for disqualification from further consideration in award of a contract.
- 8.4 The City may request that a shortlisted Proponent submit its preferred License Agreement and Support Agreement.
- 8.5 It is intended that other provisions of the draft Contract may, during negotiations with a lead Proponent, be subject to drafting changes or changes as requested by the City, but if a provision of the draft Contract is not listed in a Proposal then the City will be entitled to assume that the Proponent does not object in principle to that provision.
- 8.6 The City may consider and may choose to accept some, none, or all Contract modifications that the Proponent has submitted with its Proposal.
- 8.7 Nothing herein prohibits the City, at its sole option, from introducing or modifying contract terms and conditions and negotiating with the lead Proponent to align the Proposal to City needs, within the objectives of the RFP. The City has significant and critical timeframes which frame this initiative; therefore, should such negotiations with the highest ranked, apparent lead Proponent fail to reach agreement in a timely manner as deemed by the City, the City, at its sole discretion, retains the option to terminate negotiations and continue to the next-highest ranked Proposal.

9.0 GENERAL CONDITIONS

- 9.1 The following General Conditions apply to the Contract:

a) Time is of the Essence

Time is of the essence to this Contract.

b) Contractor's Liability Insurance

Prior to the commencement of the Work, the Contractor shall provide proof of general liability insurance as specified in **Appendix A – Insurance Requirements** and **Appendix B – Certificate of Insurance**. These minimum insurance requirements must be maintained throughout the term of any resulting contract.

c) Work Approval

The whole of the Work or service and the manner of performing the same shall be done to the entire satisfaction and approval of the City's representative and he shall be the sole judge of the Work or service and materials in respect of both quantity and quality, and his decisions with regard to Work or service and materials shall be final and binding upon the Contractor.

d) Indemnity

The Contractor shall indemnify and save harmless the City and its elected officials, officers, servants, employees, volunteers and agents from and against all claims, demands, proceedings, suits, losses, damages, costs and expenses of whatsoever kind or nature (including but not limiting the generality of the foregoing, in respect of death, injury, loss or damage to any person or property) arising in any way out of or connected with the Work by the Contractor under this agreement, except to the proportionate extent that such actions, claims, demands, proceedings, suits, losses, damages, costs and expenses were caused by the indemnified parties or any of them.

e) Prior Consent to Assign

This Contract, or any part of it, or any benefit or interest in it, shall not be assigned by the Contractor without the prior written consent of the City and shall be deemed not to be an asset of the Contractor in the event of bankruptcy.

f) Review

If either of the parties deems a change in the scope of work exists, a request may be made by the party for a fair and reasonable adjustment of either or both of an amount required to be paid, or a period of time within which work is to be performed, under the Contract. Where permitted under the Contract, the parties' representatives shall make every effort to reach agreement on, and, failing such agreement, the City's representative shall establish any adjustment to be made.

g) Compliance with Laws

The Contractor shall give all notices and obtain all the licences and permits required to perform the Work. The Contractor shall comply with all the laws applicable to the Work or performance of the Contract.

h) Governing Law

This Request for Proposal and any Contract entered into between the successful Proponent(s) and the City will be governed by and be in accordance with the laws of the Province of British Columbia.

i) Termination of Contract

The City may, by notice of default to the Contractor, terminate in whole or in part the Contract if the Contractor fails to make delivery of the item or to perform satisfactory work at the sole discretion of

the City, on any provision of the Contract, and within the time specified, or within a reasonable time if no time is specified.

j) Force Majeure

Notwithstanding anything herein to the contrary, the parties hereto shall not be deemed in default with respect to the performance or any of, or in compliance with the terms, covenants, agreements, conditions, or provisos of the Contract, if the failure to perform or comply shall be due to any strike, lockout, civil commotion, invasion, rebellion, hostilities, sabotage, acts of God or causes otherwise beyond the control of the parties.

k) Ownership of Proposals and Freedom of Information

All documents, including Proposals, submitted to the City become the property of the City. They will be received and held in confidence by the City, subject to the provisions of the Freedom of Information and Protection of Privacy Act.

l) Conflict of Interest

Proposals will not be evaluated if the Proponent's current or past corporate or other interests may, in the City's opinion, give rise to a conflict of interest in connection with this or other projects. Proponents are further cautioned that the acceptance of their Proposals may preclude their participation as a Proponent in subsequent RFP's where a conflict of interest may arise.

m) Sub-Contractors

Use of any Sub-contractor must be clearly identified in the Proposal submission. Any party who may be participating in the Proposal must be clearly identified. However, in the case of joint submissions, one party must be named as taking overall responsibility for successful completion of the Work defined in the Proposal.

The Contractor shall not subcontract or assign this Contract in whole or in part without the written consent of the City Representative, which consent the City Representative may give or withhold in its discretion. Any attempt to subcontract or assign any of the Contractor's duties or obligations under the Contract without such consent is void.

n) Award of Contract

Award of a Contract in whole or in part may be contingent upon budget approval, Council and executive approval.

The City, at its sole discretion, may award this RFP in its entirety to one Proponent, or alternatively, to more than one Proponent. The City may consider separately awarding the professional consulting services for installation and configuration, software purchase and the ongoing maintenance contract purchase.

o) Electronic Funds Transfer Payments

Prior to starting the Work, the Contractor must provide the City's Purchasing department with the Contractor's banking information required for EFT payment, if not already on file.

Payments to the Contractor shall be processed by EFT (Electronic Funds Transfer – a direct deposit into the Contractor's bank account). A Payment Advice Notice pertaining to the EFT payment is emailed to the Contractor in advance of the deposit being made. The Contractor is

required to accept payment by EFT as a commitment to the environmental form of payment selected by the City.

The Contractor shall be paid net thirty (30) days from receipt of invoice and acceptance of the phase, whichever is the later. Payment shall be in Canadian funds, unless otherwise stated by the City.

p) Consortium Proposals

If this Proposal involves a consortium or partnership, identify all members and provide information for each member. Also, clearly describe and delineate roles and responsibilities of each party and their relationship and responsibility to the single lead Proponent. The lead Proponent taking overall responsibility for the Proposal must be identified. The lead Proponent is responsible for all content and stated claims of functionality, performance, services, etc. of all named parties in their Proposal. While the City will consider such a consortium Proposal, the City has a strong preference for Proposals submitted by a single firm who would act as a prime contractor and then supplies any required specialist expertise via sub-contractors or sub-consultants, as the case may be.

q) Business License

The successful Proponent is required to have a valid City business licence prior to Contract execution.

r) Submission of Proposal

This RFP is not a formal tender call. Receipt of a Proposal will not constitute a Contract to purchase goods and/or services and the City is not bound to enter into a Contract with any Proponent. No Proponent will acquire any legal or equitable rights or privileges whatsoever in relation to the project, or portion thereof, as a result of this RFP and the City will be under no obligation to receive further information, whether written or oral, from any Proponent. Without limiting to the generality of the foregoing, this RFP will not necessarily result in any subsequent negotiations; direct contract award, other invitational or open competitive bid processes and does not constitute a commitment by the City to procure any goods or services.

s) Advertising

The approval of any Proposal and the signing of an Agreement does not allow a Proponent to advertise its relationship with the City, in any way without the City's prior written authorization. The City's name, logo, or reference to or any facsimile otherwise may not be used in any Proponent's documentation without prior written consent of the City for each and every occurrence.

t) Non Resident Withholding Tax

Holdback of 15% of each progress payment for professional services will be withheld until total completion and acceptance by the City. This is separate and additional to any deduction such as non-resident withholding tax that must be remitted to the Canadian government.

If Non Resident Withholding Tax is applicable, Contractor is required to split onsite and offsite services into separate invoices.

u) Proponent's Expenses

Proponents are solely responsible for their own expenses in preparing a RFP response and for any subsequent discussions or meetings, if any, with the City to review any RFP response. The City will not be liable to any Proponent for any claims, whether for costs or damages incurred by the

Proponent in preparing the RFP response, loss of anticipated profit in connection with any contract relating to the project, or any other matter relating to the project whatsoever.

v) Acceptance

The Proposals shall remain open for acceptance by the City for no less than 180 calendar days from the closing date. Only the issuance of a purchase order by the City's Purchasing Manager to the successful Proponent shall constitute acceptance of the RFP response. No other act by or on the part of any other party shall be binding to the City.

This RFP shall not be construed as an agreement to purchase goods or services. The City is not bound to accept the lowest priced or any RFP response of those submitted. The City will be under no obligation to receive further information, whether written or oral, from any Proponent.

Neither acceptance of a RFP response nor execution of a Contract will constitute approval of any activity or development contemplated in any RFP that requires any approval, permit or license pursuant to any federal, provincial, regional district or municipal statute, regulation or by-law.

The City is not under any obligation to award a Contract, and reserves the right to terminate the RFP process at any time.